



Right to Information through the eFOI: Enforcing Transparency and Accountability by Digitalizing Access to Information

Mary Rose M. Gerbolinga

Introduction

Transparency and accountability are essential to a well-functioning democracy. In democratic and republican states, the ultimate source of power is the people. But oftentimes, the way people exercise such power is contingent on the kind of information they receive and have access to. So while civic participation is the heart of democracy, shaping this participation entails disclosure of information especially those concerning governmental processes. With the Philippines being a democratic and republican state, the accountability and transparency through disclosure of governmental information are especially enshrined under Article III, Section 7 of the 1987 Constitution. It states that the right of the people to information on matters of public concern shall be recognized.¹

Digital technology has pervaded and transformed today's system of governance. To enhance the efficiency of governmental services and processes, the internet and computerized system of data storage and collection have been integrated by the government both at the national and local levels. Article II, Section 28 of the Constitution further reinforces the citizens' right to information under the Bill of Rights. This provision emphasizes the policy of full public disclosure by the government of all its transactions involving public interest but subject to the condition prescribed by the law.² In the case of *Chavez v PCGG*, it was emphasized that writing coming into the hands of public officers in connection with their public functions must be accessible to the public, especially if such information is related to the expenditure of public funds.³

¹ 1987 PHILIPPINE CONST. art. III, §7

² 1987 PHILIPPINE CONST. art. II, §28

³ *Chavez v PCGG*, G.R. No. 130716, 19 May 1999



But while the right to information under the Bill of Right mentions the transactions and information that must be disclosed to the public, the limitations and scope are yet to be provided through a legislation or statute. Absent specific limitations, the disclosure of certain information becomes a subject of the discretion of officials and agencies. Requests for information even those which are necessarily within public interest are kept on the ground of confidentiality, if officials and agencies deem that disclosing such information would cause controversies.

Right to Information: The digitalization of the FOI

The Freedom of Information (FOI) Bill, which mandates the disclosure of government information to the public, has still not been passed into law and it remained in the Congress. But in 2016, Former President Duterte signed Executive Order No. 2 (EO 2) entitled “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefore.”⁴ EO 2 allows requests to be filed on all Executive Branch agencies, including National Government Agencies (NGAa), Government Owned and Controlled Corporations (GOCCs), State Universities and Colleges (SUCs), and Government Financial Institutions (GFIs).⁵ Although EO 2 may not have the force and effect of a law, it paved the way for the creation of FOI Manual and mechanisms to be used by other government agencies.⁶ Following this implementation of EO 2, local government units (LGUs) have started implementing their own FOI ordinances, institutionalizing the citizens’ rights to information.⁷

The technological integration has been especially significant in the implementation of the right to information and the FOI. Along with the creation of the FOI Manual and FOI Project Management Office (FOI-PMO) in 2016 is the

⁴ Executive Order No. 02 “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor.” (2016),

<https://www.officialgazette.gov.ph/2016/07/23/executive-order-no-02-s-2016>

⁵ Office of the United Nations High Commissioner for Human Rights, *Submission to the thematic report of the Special Rapporteur on Freedom of Opinion and Expression to the UN Human Rights Council: “Freedom of Opinion and Expression and Sustainable Development - Why Voice Matters,”* A/HRC/53/25 (2023).

⁶ Open Government Partnership, *Passage of Freedom Information Law*, (2019), ¶61, <https://www.opengovpartnership.org/members/philippines/commitments/PH0062/#.ftnref78>

⁷ *Id.*, at ¶7



establishment of an electronic FOI (eFOI) portal.⁸ The eFOI is an online system where Filipinos can submit their FOI requests to government agencies with ease.⁹ Citizens no longer have to personally go to the agency and line up to request information and at the same time the agencies can also reduce the time spent in catering the citizens lining up in their office. Undeniably, this mechanism is convenient for both the public and the government.

But nine years since EO 2 has been signed and the eFOI has been established, has the Philippines successfully enforced transparency, accountability and the citizens' rights to information?

Why mere integration of technology is inadequate in enforcing FOI

The eFOI was primarily created by the government as a response to the call for transparency and full public disclosure of information.¹⁰ However, EO 2 does not cover all branches of the government and is merely confined to the executive department and executive branch agencies.¹¹ Thus, even if the request for information has been made easy and convenient by the electronic system, the citizens' access is still significantly constrained. This can be primarily attributed to the lack of FOI law. Moreover, since the guidelines of the current FOI Act are created under the discretion of the executive officials, they can decide which information is politically convenient to disclose. In fact, under the Duterte Administration, the provision of EO 2 was blatantly violated by the President himself.¹² Section 5 of the Executive Order explicitly mandates the disclosure of SALN of public officials but former President Duterte refused to publicly disclose his SALN and all requests were denied.¹³ Under the Marcos Administration, more exceptions were added to the documents and information covered by the FOI.¹⁴ While privileged information related to national security and privacy of persons are valid grounds to deny request, the absence of a law providing definite standards defining what is confidential,

⁸ *Id.*, at ¶6

⁹ Freedom of Information Philippines, *Frequently Asked Questions*, (July 7, 2025, 11:47 AM), <https://www.foi.gov.ph/faqs/>

¹⁰ *Id.*

¹¹ Philippine Daily Inquirer, *Defeating the Spirit of FOI*, Inquirer Net, May 16, 2023, <https://opinion.inquirer.net/163171/defeating-the-spirit-of-foi>

¹² Malou Mangahas, *Duterte's Secret SALN: The lie of his FOI*, PCIJ, December 11, 2019, <https://pcij.org/2019/12/11/dutertes-secret-saln-the-lie-of-his-foi/>

¹³ *Id.*

¹⁴ Philippine Daily Inquirer, *Defeating the Spirit of FOI*, Inquirer Net, May 16, 2023, <https://opinion.inquirer.net/163171/defeating-the-spirit-of-foi>



Journal for Law Advocacy
Volume 5, Year 2025-2026

renders eFOI inadequate. A study of Perez (2020) found that out of 7,712 requests in 2018, 30% were denied.¹⁵ Currently, there are over 200,000 requests in the eFOI¹⁶ but given that the additional exceptions were added to EO 2 by the current administration, the rate of denial of requests may only increase.

The inadequacies with the current eFOI policy consequently affect the implementation and enforcement. Implementation gaps first cover frequent denial of requests. This often stems from differences in the understanding of what constitutes information.¹⁷ Under Section 8 of EO 2, every government agency is allowed to create its own FOI manual.¹⁸ Although, EO 2 already provided for a general definition of “information,” allowing different agencies to create their own manual might create definitions of “information,” “records,” or “transaction,” possibly broadening or limiting its meaning. The absence of an evaluation mechanism in the current FOI policy and in the eFOI portal further allows agencies to deny even if the requested information is not privileged and is essentially covered by the FOI manual.

Moreover, the lack of access to the FOI manual of agencies for the clear process of requesting information further contributes to denials in requests for eFOI.¹⁹ Since agencies may create their own manual as to how the citizens can access their information, they may add additional requirements or conditions. Since the current eFOI portal does not readily make such requirements available, the user requesting cannot properly comply, hence their request ends up being denied. Moreover, non-tech-savvy users in particular find it difficult to determine which agency they should request particular information from.

¹⁵ Paul Jason V. Perez, *Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach*. 40 UP SLIS. 3, 4 (2020).

¹⁶ Freedom of Information Philippines, *Browse Requests*, (July 7, 2025, 12:435 AM), <https://www.foi.gov.ph/faqs/>

¹⁷ Paul Jason V. Perez, *Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach*. 40 UP SLIS. 3, 29 (2020).

¹⁸ Executive Order No. 02 “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor.” (2016), <https://www.officialgazette.gov.ph/2016/07/23/executive-order-no-02-s-2016>

¹⁹ Paul Jason V. Perez, *Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach*. 40 UP SLIS. 3, 28 (2020).



Journal for Law Advocacy
Volume 5, Year 2025-2026

Perez (2020) emphasized that these implementation gaps may be addressed through use of controlled vocabularies, guides, and chat supports would reduce the likelihood of misdirected requests and promote procedural fairness and accuracy in the FOI process.²⁰

Conclusion

The enforcement of right to information through the eFOI can only truly promote transparency and accountability if there is a genuine FOI law passed by the Congress that would cover all branches of the government and would clearly establish what constitutes confidential information. The right to information is a fundamental right, which must not be a mere subject of the discretion of people in power. The digitization of FOI requires both addressing policy issues through legal standardization through the passage of law leading to consistency in government agencies along with improvements in the implementation process through the promotion of procedural fairness in the FOI process. Digital revolution may enhance the efficiency and performance of the government, but it can never address the inadequacy of the existing policies and services.

²⁰ Id., at ¶31



Bibliography

Constitution

1987 Philippine Constitution, Article II, Section 28

1987 Philippine Constitution, Article III, Section 7

Laws

Executive Order No. 02 “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor.” (2016),
<https://www.officialgazette.gov.ph/2016/07/23/executive-order-no-02-s-2016>

Jurisprudence

Chavez v PCGG, G.R. No. 130716, 19 May 1999

Government Articles

Freedom of Information Philippines, *Frequently Asked Questions*, (July 7, 2025, 11:47 AM), <https://www.foi.gov.ph/faqs/>

Open Government Partnership, *Passage of Freedom Information Law*, (2019), ¶61,
https://www.opengovpartnership.org/members/philippines/commitments/PH0062/#_ftnref78

Articles

Malou Mangahas, *Duterte’s Secret SALN: The lie of his FOI*, PCIJ, December 11, 2019, <https://pcij.org/2019/12/11/dutertes-secret-saln-the-lie-of-his-foi/>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Office of the United Nations High Commissioner for Human Rights, *Submission to the thematic report of the Special Rapporteur on Freedom of Opinion and Expression to the UN Human Rights Council: "Freedom of Opinion and Expression and Sustainable Development - Why Voice Matters,"* A/HRC/53/25 (2023).

Paul Jason V. Perez, Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach. 40 UP SLIS. 3- 36 (2020).

Philippine Daily Inquirer, *Defeating the Spirit of FOI*, Inquirer Net, May 16, 2023, <https://opinion.inquirer.net/163171/defeating-the-spirit-of-foi>